

Court File Number

(Name of Court)

at

Court office address

**Form 38:
Notice of Appeal**

Applicant(s) Check the appropriate box: ☐ **Appellant** ☐ **Respondent** in this appeal

Full legal name & address for service — street & number, municipality, postal code, telephone & fax numbers and e-mail address (if any).

Lawyer's name & address — street & number, municipality, postal code, telephone & fax numbers and e-mail address (if any).

Respondent(s) Check the appropriate box: ☐ **Appellant** ☐ **Respondent** in this appeal

Full legal name & address for service — street & number, municipality, postal code, telephone & fax numbers and e-mail address (if any).

Lawyer's name & address — street & number, municipality, postal code, telephone & fax numbers and e-mail address (if any).

Name & address of Children's Lawyer's agent (street & number, municipality, postal code, telephone & fax numbers and e-mail address (if any)) and name of person represented.

My name is (name of party making this appeal)

I APPEAL TO THE (name of court)

at (municipality)

from the following order or decision:

Date of order:

Name of court that made it:

Name of judge who made it:

Place where it was made:

It was: ☐ a final order. ☐ a temporary order.

I ask that this order be set aside and that an order be made as follows:

(Set out briefly the order that you want the appeal court to make.)

The legal grounds for my appeal are: *(Set out in numbered paragraphs the legal basis of your appeal.)*

1.

Draw a line through any space left on this page.

NOTE TO THE APPELLANT: You have 30 days to serve this notice on the other parties in the case and you must file it with the clerk of the appeal court with proof of service (Form 6B) within 10 days after that.

NOTE TO THE RESPONDENT: If you want to oppose this appeal, you or your lawyer must prepare a respondent's factum required by subrule 38(9) of the *Family Law Rules*, serve a copy on the appellant(s) and file a copy with the clerk of the appeal court with proof of service (Form 6B). You must serve and file a respondent's factum at least 3 days before the hearing of the appeal. If you do not, the appeal will go ahead without you and the court may make a new order and enforce it against you.

Date of signature

Signature